

25NWCV04450 25NWCV04450

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-16

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Case Number: 25NWCV04450 Hearing Date: July 16, 2026 Dept: P

BRENDA CANSLER v. ARTESIA

COMMUNITY HEALTHCARE, LLC, ET AL.

CASE

NO.: 25NWCV04450

HEARING: 07/16/2026 @

9:30 AM

#14

TENTATIVE ORDER

I. Petitioner Corey Cansler's Petition for Approval of Compromise of Claim is CONTINUED to Friday, August 7, 2026, at 9:30 AM in Dept. P.

II. Petitioner is INSTRUCTED to file declarations by Petitioner and a representative of CPT Institute regarding the management of the funds in the special needs trust for the benefit of Claimant Brenda Cansler by August 4, 2026

-- CASE

MANAGEMENT CONFERENCE is advanced to this date and continued to August 7, 2026, at 9:30 a.m.

Moving party to give notice.

Petitioner Corey Cansler (Petitioner), Guardian ad Litem for

Claimant Brenda Cansler (Claimant), moves for approval of compromise of claim.

Background

On December 16, 2025, Plaintiff Brenda Cansler, by and through her Guardian ad Litem Corey Cansler filed this action against Defendants Artesia Community Healthcare, LLC dba Artesia Palms Care Center (Artesia Palms); PACS Group, Inc.; and Does 1-25 (collectively, Defendants). The complaint alleges that Plaintiff, aged 74, was admitted to Artesia Palms on March 25, 2025 for skilled nursing care and management of her psychiatric symptoms. (Complaint, ¶¶ 19, 24.) Despite Defendants' awareness of Plaintiff's risks of elopement and wandering, on May 18, 2025, Plaintiff and another resident left the facility and remained missing for a 27-hour period. (Complaint, ¶¶ 29-31.) The complaint alleges the CDPH conducted an investigation into the elopement episode and determined it was an "an Immediate Jeopardy (IJ) situation," a situation in which a facility's non-compliance with a regulation caused serious harm or impairment, to a resident. (Complaint, ¶ 38.) The complaint asserts two causes of action: (1) negligence and (2) violation of patient's rights.

On May 8, 2026, Petitioner filed a Petition for Approval of Compromise of Claim (Petition).

On June 12, 2026, the Court granted Plaintiff's ex parte application to advance this Petition.

On June 30, 2026, Petitioner filed an Amendment to Plaintiff's Petition to Approve Compromise Requesting Permission to Place Funds into Special Needs Pooled Trust (Amendment).

Discussion

Petitioner moves for approval of compromise of claim and to place funds into a special needs pooled trust. This Petition is unopposed.

Based on review of the Petition, supporting documents, and Amendment, the Court finds that there is insufficient information regarding how CPT Institute will manage the funds as to Claimant. Exhibit 1 to the Amendment provides general information regarding the CPT Institute without reference to the management of Claimant's funds or the fees and costs that would be applicable here.

Accordingly, Petitioner's petition for approval of compromise of claim is CONTINUED to Friday, August 7, 2026 at 9:30 AM in Dept. P. Petitioner is INSTRUCTED to file declarations by Petitioner and a representative of CPT Institute regarding the plans for management of funds in the special needs pooled trust specifically as to Claimant, as beneficiary, by August 4, 2026.

CASE MANAGEMENT CONFERENCE is advanced to this date and continued to August 7, 2026, at 9:30 a.m.

Moving party to give notice.